

CHAPTER 39.

An Act to make provision with respect to the tenure of office of Masters of Endowed Schools.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) Notwithstanding anything contained in any scheme made with reference to an endowed school, any master in the school, by whomsoever appointed, and whether appointed before or after the passing of this Act, shall be deemed to be in the employment of the governing body for the time being of the school.

Tenure of office of masters of endowed schools.

(2) It is hereby declared that, notwithstanding anything in section twenty-two of the Endowed Schools Act, 1869, any provision in any scheme, whether made before or after the passing of this Act, providing for notice being given to a master before he is dismissed from office, shall have full effect.

32 & 33 Vict. c. 56.

(3) Subject to any special provisions as to notice contained in any scheme relating to an endowed school, and subject to any special agreement as to notice, the dismissal of a master in an endowed school, whether appointed before or after the passing of this Act, shall not take effect except at the end of a school term, and except after at least two months' notice of dismissal has been given to him by or on behalf of the governing body of the school.

(4) Nothing in this Act or in any scheme, whether made before or after the passing of this Act, shall prevent the dismissal of a master without notice for misconduct or other good and urgent cause.

2. Nothing in this Act shall prejudice the operation or enforcement of any judgment or order of any court of competent jurisdiction pronounced or made before the first day of August nineteen hundred and eight, as between the parties to the proceedings in which the judgment was pronounced or the order made, and any appeal from any such judgment or order shall be decided as if this Act had not passed.

Saving for effect of judgments of court.

3. In this Act—

The expression "endowed school" means an endowed school within the meaning of section six of the Endowed Schools Act, 1869, and includes any school which would be treated as an endowed school within the meaning of that section if section eight of that Act had not been enacted: Provided that nothing in this Act shall apply to a public elementary school or to any school which is one of the schools mentioned in section three of the Public Schools Act, 1868:

Definitions.

31 & 32 Vict. c. 118.

The expression "scheme" means a scheme made under the Endowed Schools Acts, 1869 to 1889, or under the Charitable Trusts Acts, 1853 to 1894, with reference to an endowed school:

The expression "master" means any teacher or officer in the school, and includes the principal teacher.

Short title.

4. This Act may be cited as the Endowed Schools (Masters) Act, 1908, and may be cited with the Endowed Schools Acts, 1869 to 1889.

CHAPTER 40.

An Act to provide for Old Age Pensions.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Right to receive old age pension.

1.—(1) Every person in whose case the conditions laid down by this Act for the receipt of an old age pension (in this Act referred to as statutory conditions) are fulfilled, shall be entitled to receive such a pension under this Act so long as those conditions continue to be fulfilled, and so long as he is not disqualified under this Act for the receipt of the pension.

(2) An old age pension under this Act shall be at the rate set forth in the schedule to this Act.

(3) The sums required for the payment of old age pensions under this Act shall be paid out of moneys provided by Parliament.

(4) The receipt of an old age pension under this Act shall not deprive the pensioner of any franchise, right, or privilege, or subject him to any disability.

Statutory conditions for receipt of old age pension.

2. The statutory conditions for the receipt of an old age pension by any person are—

(1) The person must have attained the age of seventy:

(2) The person must satisfy the pension authorities that for at least twenty years up to the date of the receipt of any sum on account of a pension he has been a British subject, and has had his residence, as defined by regulations under this Act, in the United Kingdom:

(3) The person must satisfy the pension authorities that his yearly means as calculated under this Act do not exceed thirty-one pounds ten shillings.

Disqualification for old age pension.

3.—(1) A person shall be disqualified for receiving or continuing to receive an old age pension under this Act, notwithstanding the fulfilment of the statutory conditions—

(a) While he is in receipt of any poor relief (other than relief excepted under this provision). and, until the